

HSU v DEL MUNDO

24CV47462

DEFENDANTS' DEMURRER TO COMPLAINT

Plaintiff Mike Sheng Con Hsu ("Plaintiff") filed his Complaint arising out of a real property dispute with Defendants Leonardo Del Mundo and Angela Del Mundo ("Defendants"). Now before the Court is Defendants' demurrer.

There is some dispute over the sufficiency of meet and confer efforts. The Court reminds the parties of the requirement of Code of Civil Procedure section 430.41, but notes that the failure to meet and confer may not be a reason to grant or deny a demurrer. (Code Civ. Proc.430.41(a)(4).)

I. FACTS

Allen Weeks and Barbara Weeks (hereinafter "the Weeks") were the homeowners of the property at 11058 Slate Drive, San Andreas, California (hereinafter "Subject Property"). In May 1993, John W. Matthews and Diane Matthews (hereinafter "Matthews") were the homeowners of the property at 11034 Slate Drive, San Andreas, California (hereinafter "Neighboring Property").(Complaint ¶ 8.) The Subject Property and the Neighboring Property are adjacent to one another and located at the end of Slate Drive. (Id. ¶ 9.) On or about May 28, 1993, the Weeks obtained an easement for non-exclusive use for a 20 feet in width roadway on the Neighboring Property to be used by the Weeks ("Easement") (Id. ¶ 10.) Plaintiff alleges that Easement has been used as a driveway from 1993 to present day. (Id. ¶ 11.)

On or about August 10, 2017, Plaintiff purchased the Subject Property from the Weeks and continued to use the recorded Easement. (Id. ¶ 12.) In 2021, Defendants purchased the Neighboring Property. (Id. ¶ 13.) In December 2022, Defendants built a wired fence on the recorded easement covering about 80% of the driveway thereby reducing Plaintiff's ability to use the recorded easement. (Id. ¶ 14.) Plaintiff has repeatedly requested that Defendants remove the fence but Defendants have refused to do so. (Id. ¶ 17, 18.)

The parties strongly contest the factual issue of whether the wired fence still exists on the driveway. However, at the demurrer stage the Court may only consider the pleadings alone, and not the legitimacy of the facts alleged. (*City of Atascadero v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1998) 68 Cal.App.4th 445, 458.)

Plaintiff brought the instant action against Defendants for: 1) injunctive relief, 2) nuisance, 3) easement by prior use, and 4) declaratory relief.

II. Legal Standard

“A demurrer tests the sufficiency of a complaint and admits all facts properly pleaded.” (*Setliff v. E.I. Du Pont de Nemours & Co.* (1995) 32 Cal. App. 4th 1525, 1533.) The court assumes the truth of the allegations asserted but does not assume the truth of “contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal. App. 4th 242, 247.) The court can further look at those facts that “reasonably can be inferred from those expressly pleaded, and matters of which judicial notice has been taken.” (*Fremont Indemnity Co.*, 148 Cal. App. 4th 100, 111.) In considering the demurrer, the court must accept the allegations set forth in the complaint as true. (*Serrano v. Priest* (1971) 5 Cal.3d 584, 591.)

III. Discussion

A. Injunctive Relief and Viable Causes of Action

When considering a claim for injunctive relief the Court balances the: (1) likelihood of success on the merits, (2) irreparable harm if the injunction is not granted, (3) whether a balancing of the relevant equities favors the injunction; and (4) whether the issuance of the injunction is in the public interest. (Cal. Civ. Proc. §527.) Defendant claims that plaintiff fails to establish a viable cause of action to support injunctive relief.

Here Plaintiff alleges two causes of action underlying their request for injunctive relief: 1) nuisance and 2) easement based on prior use (implied easement).

1. Nuisance

In order to state a claim for nuisance, Plaintiff must allege facts showing: “[a]nything which is injurious to health . . . or is indecent or offensive to the senses, or an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property.” (Civ. Code, § 3479.)” “A nuisance may be both public and private, but to proceed on a private nuisance theory the plaintiff must prove an injury specifically referable to the use and enjoyment of his or her land.” (*Koll-Irvine Center Property Owners Assn. v. County of Orange* (1994) 24 Cal.App.4th 1036, 1041.)

To establish an action for private nuisance, the plaintiff must prove an interference with his use and enjoyment of his property; (2) the invasion must be substantial and cause substantial actual damage; and 3) the interference with the protected interest must not only be substantial, but it must also be unreasonable. (*Mendez v. Rancho Valencia Resort Partners, LLC* (2016) 3 Cal.App.5th 248, 262-263.)

Here, Plaintiff alleges that he has a valid and recorded Easement which has been consistently used as a driveway to access his property. Plaintiff alleges that Defendants built a wired fence on the Easement covering 80% of the driveway. (Complaint ¶¶ 12, 14). As a result of the fence covering 80% of their driveway, Plaintiff has had his use and enjoyment of his property substantially limited. While Plaintiff has sufficiently alleged that use of the driveway has been restricted, he does not allege that he has suffered any “substantial actual damage.” (*Mendez, supra* 3 Cal.App.5th 248, 262-263.) That is, there is no factual allegation of substantial economic or non-economic damage caused by Defendants’ conduct.

Because Plaintiff does not allege substantial actual harm caused by the fence, he does not state a cause of action for nuisance. As such, his claim for nuisance cannot form the basis for the request for injunctive relief.

2. Easement from Prior Use

California Civil Code section 1104 provides:

A transfer of real property passes all easements attached thereto, and creates in favor thereof an easement to use other real property of the person whose estate is transferred in the same manner and to the same extent as such property was obviously and permanently used by the

person whose estate is transferred, for the benefit thereof, at the time when the transfer was agreed upon or completed.

An implied easement may be inferred “where there is an obvious ongoing use that is reasonably necessary to the enjoyment of the land granted.” (*Thorstrom v. Thorstrom* (2011). 196 Cal.App.4th 1406, 1419.)

Plaintiff has alleged that the Weeks, from whom Plaintiff purchased the Subject Property, had an Easement to use the 20-foot strip of road as a driveway. He alleges that the use of the Easement had occurred continuously since 1993 and that when plaintiff purchased the Subject Property, he took the Easement and continued using the driveway to access his home. Plaintiff has alleged that the Easement is necessary for the use and enjoyment of the Subject Property because it provides the means of access.

Plaintiff adequately sets forth a cause of action based on implied easement and accordingly can rely on this cause of action in seeking injunctive relief. However, while Plaintiff has shown that he may have success on the merits of this cause of action, he has not alleged irreparable harm by being forced to drive more carefully or over the dirt, rather than the driveway. Thus, he has not stated a claim for injunctive relief.

B. Declaratory Relief

Code of Civil Procedure section 1060 allows for the bringing of an action for declaratory judgment in order to ascertain the ongoing rights and duties of parties to an actual controversy. “One test of the right to institute proceedings for declaratory judgment is the necessity of present adjudication as a guide for plaintiff’s future conduct in order to preserve his legal rights.” (*Meyer v. Sprint Spectrum L.P.* (2009) 45 Cal.4th 634, 647.)

Defendants argue that there is no active controversy because the wired fence has been removed. This fact is contested by Plaintiffs. Regardless, at the demurrer stage, the Court looks only to the facts as alleged in the pleadings. The Complaint explicitly alleges that there is an ongoing controversy surrounding the existence of fence on the Plaintiff’s driveway.

The demurrer to the cause of action for declaratory relief is **OVERRULED**.

IV. Conclusion.

Plaintiff has not stated a cause of action for nuisance and the demurrer is **SUSTAINED, with leave to amend.**

Plaintiff has stated a cause of action for implied easement and the demurrer is **OVERRULED** as to that cause of action.

Plaintiff has not sufficiently alleged facts showing irreparable harm, and as such the cause of action for injunctive relief is **SUSTAINED, with leave to amend.**

The demurrer to the cause of action for declaratory relief is **OVERRULED.**

Plaintiff's request for leave to amend the Complaint to add causes of action for breach of contract and interference with easement is **GRANTED.** Plaintiff must file and serve a First Amended Complaint within ten (10) Court days of service of this Ruling.

The Clerk shall provide notice of this Ruling to the parties forthwith. Defendants to submit a formal Order in conformity with this Ruling in compliance with Rule of Court 3.1312.

PURDY, et al v MERRICK

24CV47781

PLAINTIFFS' MOTION FOR SERVICE VIA PUBLICATION

This case involves a complaint to partition by sale of real property located at 1439 Calaveritas Road, San Andreas, CA 95249 ("Property") brought by Kristie Purdy ("Purdy") and Steven Savickas ("Savickas") (collectively "Plaintiffs") against Robert Merrick ("Defendant").

Now before the Court is plaintiffs' motion for service by publication.

Pursuant to California Code of Civil Procedure section 415.50, if service by other means authorized by statute is impossible, service may be effected by publication upon approval by the trial court. (*See also Watts v. Crawford* (1995) 10 Cal.4th 743, 748-749, fn. 5.) For service by publication, a plaintiff must show that they have exercised reasonable diligence to attempt to locate and serve the defendants in another manner. Summons may be served by publication if the plaintiff can, by affidavit, show the court that the party cannot be served with reasonable diligence in another manner specified in that article, and " [t]he party to be served has or claims an interest in real property in this state that is subject to the jurisdiction of the court or the relief demanded in the action consists wholly or in part in excluding the party from any interest in the property." (Cal. Code Civ. Proc. §415.50(a)(2).)

Code of Civil Procedure sections 873.320 provides the manner of service by publication in proceedings for partition. It provides:

- (a) The plaintiff shall post, not later than 10 days after the date the order is made, a copy of the summons and complaint on the real property that is the subject of the action.
- (b) The plaintiff shall record, if not already recorded, a notice of the pendency of the action.
- (c) The publication shall describe the property that is the subject of the action. In addition to particularly describing the property, the publication shall describe the property by giving its street address, if any, or other common designation, if any;